

REVITALIZED DECLARATION OF RESTRICTIONS
HICKORY CREEK SUBDIVISION UNIT 1

This Revitalized Declaration of Restrictions for Hickory Creek Subdivision Unit 1 has been approved by the Membership of Hickory Creek Property Owners' Association, Inc., who own lots within Hickory Creek Subdivision Unit 1, pursuant to Chapter 720 of the Florida Statutes. The original Hickory Creek Restrictions for Hickory Creek Subdivision, Unit #1, recorded in Official Records Book 2169, Pages 635 through 643, of the Public Records of Hillsborough County, Florida shall be effective upon recording of this Revitalized Declaration as to certain lands in Hillsborough County, Florida, more particularly described as follows:

Hickory Creek Subdivision Unit # 1, recorded in Plat Book 43, Pages 7 through 8, of the Public Records of Hillsborough County, Florida.

* * * * *

KNOW ALL MEN BY THESE PRESENTS, that HORATIO CORP. OF FLORIDA, a Florida corporation, having its principal place of business in Hillsborough County, Florida, as owner of certain lands in Hillsborough County, Florida, being developed for residential purposes, said lands being described as Lots 1 through 9, Block 1, and Lots 1 through 5, Block 2, Hickory Creek Subdivision, Unit #1, as shown by plat recorded in Plat Book 43, Page 7, Public Records of Hillsborough County, Florida, files herewith, in accordance with Chapter 695, Florida Statutes, the following master form of restrictions, covenants running with the land, and conditions of use and occupancy. The purpose of these Restrictions, which shall apply only to the hereinabove described property, is to enable and aid the establishment and maintenance of an exclusive residential area of the highest quality for the maximum benefit and enjoyment of its residents.

1. The herein described lots and every piece, part and parcel thereof, shall be used for single family residential purposes only.

2. The word "plot," wherever used herein, shall mean the entire piece of land in which a residence is situated, or is to be situated, be it one lot, more than one lot, parts of more than one lot, or less than one lot, which meet or meets the plot size requirements of these Restrictions.

3. Each one-story house shall contain at least One Thousand Seven Hundred and fifty (1,750) square feet. Each two-story house shall contain at least Two Thousand Four Hundred (2,400) square feet, and such two-story house must contain must at least One Thousand Four Hundred (1,400) square feet in its first floor.

When computing the size of a house, the area included in the open porch, garage, and carport areas shall not be included, and the aforesaid square foot requirements pertain to enclosed living area only, including exterior walls of the house. Each house shall have a garage, or a carport, for not less than two automobiles with a total of at least five hundred (500) square feet, including utility or storage area.

4. A house, garage, or carport, shall not be closer than fifty (50) feet to the front plot line. The words “front plot line,” wherever used herein, shall mean the plot line boarding the street which the house faces, or most nearly faces.

5. A stable shall not be closer than 100 feet to the front plot line. The words “front plot line,” wherever used herein, shall mean the plot line bordering the street which the house faces, or most nearly faces.

6. A house, garage, carport or stable shall not be closer than twenty-five (25) feet to the rear plot line. The words “side plot line” and “rear plot line,” wherever used herein, shall have their usual meaning considered in relation to the front plot line.

7. A house, garage, carport or stable shall not be closer than twenty-five (25) ft to the side plot line. The words “side plot line” shall have its usual meaning considered in relation to the front plot line.

8. Open porches and utility and storage rooms which are a part of a carport are subject to the foregoing setback requirements for carports and garages, as are outbuildings, including but not limited to glass houses and screen enclosures with screen roofs, with the further requirement outbuildings shall be located only in the rear yard. Screened or glassed-in porches are subject to the forgoing setback requirements for houses.

9. Garages and carports must be located without any openings onto the front yard. All openings to carports and garages will be either on the side or the rear of the dwellings.

10. No building shall be erected, altered, placed, or permitted to remain on any residential building plot other than one detached single-family dwelling not to exceed three stories in height and a private garage or carport for not more than a number of cars equal to the number of bedrooms in the house, and other outbuildings as otherwise provided herein. No building shall be erected on any plot containing less than twenty-five thousand (25,000) square feet or on any plot having a width, measured at the middle of the plot, of the less than one hundred (100) feet, except corner plots where said width shall not be less than ninety (90) feet.

11. No fence wall or any type shall be erected on any lot or building plot prior to January 1, 1991, unless such fence wall is approved by Horatio Corp. of Florida, or its assigns, said approval to be secured in writing prior to erection and following submission to Horatio Corp. of Florida of drawing or written description which fully describes said fence or fence wall and its location.

12. Boundary fences (walls) may be established, erected, and maintained by Horatio Corp. of Florida and /or the Hickory Creek Property Owners Association, Inc., within certain easements designated as bridle paths. No owner, other than Horatio Corp. of Florida, of any lot, may alter, modify, damage, remove, or change in any way such fence or any portion thereof. Such fences, erected primarily for aesthetic protection of the Subdivision, are intended for the exclusive use of the adjoining property owners and such owners may not convert such fences to their exclusive use.

13. No asphalt shingle roofs may be used unless they are classed as at least two hundred and ninety (290) pound roof, and then the only with written approval of Horatio Corp. of Florida. Gravel type roofs may not be used except on flat roof surface.

14. All air conditioner compressors shall be screened with shrubbery so as to be wholly or substantially not visible from the street or any other plot. All air conditioner compressors shall be acoustically insulated, if necessary, to reasonably reduce noise from this source heard on adjacent lots.

15. All garbage or trash containers, oil tanks, bottle gas tanks, soft water tanks, and similar structures or installations, shall be placed under the surface of the ground or in a walled-in areas so as to not be visible from the street or any other plot. No clotheline, permanent or portable, shall be placed so as to be visible from the street or from adjacent or nearby plots.

16. The erection of new house, or the repair of any house or structure damage by fire or otherwise, on any lot or plot shall be completed without unreasonable delay, and should the owner leave such house or structure in an incomplete condition for a period of more than six (6) months, then Horatio Corp. of Florida is authorized and empowered as its discretion either to tear down and clear from the the premises said house or structure which is incomplete or in need of repair, or to complete or repair it in a manner deemed proper in the discretion of Horatio Corp. of Florida and, in either event, the expense incurred by Horatio Corp. of Florida shall be a lien against said plot, enforceable in the same manner as a mortgage lien.

17. No sign of any kind shall be displayed on any lot or plot except a sign advertising said plot for sale. Such sign must not exceed the dimensions of two feet by four feet.

18. No animals, livestock or poultry of any kind shall be raised, bred, or kept on any lot or plot, except that dogs and cats or other household pets may be kept., provided they are not kept, bred or maintained for any commercial purpose. Saddle horses or ponies, not to exceed two such animals to plot or lot, may be kept so long as such animals are for the exclusive use of the occupants of the dwelling.

19. No garage shall be erected on any lot or plot prior to the construction of a house thereon.

20. No noxious or offensive trade or activity shall occur upon or incident to any plot, nor shall anything be done thereon which is an annoyance or nuisance.

21. No existing structure shall be moved onto any lot or plot except for tool houses which are used by the house building contractor and which shall be removed after completion of improvements.

22. No structure or shelter of any type of a temporary nature or character shall be used as a residence.

23. All houses and all outbuildings, such as garages, carports, utility rooms, swimming pools, screen enclosures, bathhouses, stables, etc., or additions thereto, must be built to plans which have the written approval of Horatio Corp. of Florida, its successors or assigns, prior to the commencement of the construction, and which meet all requirements contained in these Restrictions. Horatio Corp. of Florida may, as its discretion and solely on the basis of its aesthetic standards for Hickory Creek S/D, withhold approval of such a plan which meets all of the requirements contained in these Restrictions. Such withholding of approval may take place with regard to location of house and outbuildings on a plot, and setback distance requirements may be thereby increased in such instances so as to be, in the discretionary judgment of Horatio Corp. of Florida, more consistent with the setback distances of other plots. Any requirements elsewhere in these Restrictions including any requirement for written approval by Horatio Corp. of Florida, of a particular aspect of construction or design, shall not detract in any way, by implication or otherwise, from the requirement of this paragraph that all plans, as aforesaid, shall contain specific details of all features, such as eave, cornice, entrance frame and moldings, which affect the exterior appearance of said house or outbuilding and shall be submitted to Horatio Corp. of Florida as least five (5) days prior to commencement of construction. Any deviation, however minor, from said plans which would affect the location or exterior appearance of a house or outbuilding, or which would prevent the house or outbuilding from meeting all requirements of these Restrictions, shall nullify previously given approval. Architectural control and rights of architectural or structural approval specified hereinabove and elsewhere in these Restrictions shall be exercisable and enforceable by, and shall become the right and responsibility of, Hickory Creek Property Owners Association, Inc., if at any time Horatio Corp. of Florida owns less than five (5) lots in Hickory Creek S/D.

24. The owner of each plot shall pay to Hickory Creek Property Owners Association, Inc., a Florida corporation, at Tampa, Florida, a fee of One Hundred Dollars (\$100.00) per year, payable on the first of day of January of each year, provided however; Horatio Corp. of Florida shall pay no more than One Hundred Dollars (\$100.00) per year on account of any and all lots owned by the said Horatio Corp. of Florida. Said fee may be increased only by two-thirds (2/3) of

the total membership votes of Hickory Creek Property Owners Association, Inc., provided that, in computing said membership votes for this purpose, Horatio Corp of Florida shall hold no more than one (1) vote, regardless of the number of lots owned by Horatio Corp of Florida. Said fee may be decreased only by two-thirds (2/3) of the total membership votes of Hickory Creek Property Owners Association, Inc., and, in computing said membership votes for the purpose of decreasing said fee, Horatio Corp. of Florida, shall hold the number of votes to which it is entitled under the Articles of Incorporation of Hickory Creek Property Owners Association, Inc. Votes for the purpose of increasing or decreasing the said fee may be cast by registered mail if at a duly constituted meeting of the membership of Hickory Creek Property Owners Association, Inc., called for said purpose, a majority of those present vote in favor of said increase or decrease but said increase or decrease is not thereby favored by a two-thirds (2/3) vote of the total membership vote of said organization, such voting by registered mail to be conducted and completed within ninety (90) days after said meeting under procedures otherwise established by the Board of Directors of Hickory Creek Property Owners Association, Inc.

25. Any such fee remaining unpaid by any such plot owner for a period of thirty (30) days following the date payable as specified hereinabove shall thereafter bear interest at the rate of eight per cent (8%) per annum, and shall become, and be, a lien against said plot, the amount of said lien to include said interest and all costs of recordation, collection, and enforcement of said lien, including reasonable attorney's fees. The Board of Directors of Hickory Creek Property Owners Association, Inc., may at any time after such fee or assessment has become a lien, as aforesaid, record in public records of Hillsborough County, Florida, a Notice of Lien, which shall state the amount and description of said lien, name of delinquent plot owner, and description of the property of said owner affected by said lien, said Notice to be signed by an officer of Hickory Creek Property Owners Association, Inc. Upon satisfaction of said lien, said corporation shall provide said owner with written notice that said lien has been satisfied, said notice of satisfaction of lien to be signed by an officer of said corporation. Said lien may be enforced and foreclosed upon as and in the same manner as is provided for the foreclosure of a real estate mortgage under Florida law.

26. Each lien established by these Restrictions shall be subordinate to a bona fide mortgage which has been given in good faith and for value by any owner against whose property

in Hickory Creek said lien attaches as aforesaid if such mortgage has been recorded prior to recordation of the Notice of Lien referred to hereinabove.

27. Each plot with a house thereon, whether occupied or unoccupied, shall be maintained clean and free from refuse, debris, unsightly growth, and any fire hazard. In the event any plot owner shall fail, neglect or omit to trim or maintain any hedge at the street line, or fail to keep clean and maintained any lot in the manner hereinabove specified for more than ten (10) days after having been given notification to do so by the Hickory Creek Property Owners Association, Inc., addressed via registered or certified mail to such owner at his last known address, the Hickory Creek Property Owners Association, Inc., may enter upon such plot for the purpose of remedying said defects and failures stated in said notice, and the expense of the remedying said defects shall be charged to the owner of such plot and shall become a lien upon such plot, collectable and enforceable in the same manner as other charges or liens as hereinabove provided.

28. All service entrance installations served by the underground electrical distribution system shall be installed underground and maintained in accordance with specifications of the Tampa Electric Company for such installation.

29. Due to narrow dimensions on certain lots, the side line requirements of paragraph 7 requiring the structures be not closer than twenty-five (25) feet to the side lot plot line are amended so that on Lot 8, Block 1, a stable may be constructed no closer than eight (8) feet to the west boundary line. On Lot 7, Block 1, the same requirements are amended so that a stable may be constructed no closer than eight (8) feet to the east boundary line.

30. Easements have been created and designated as a bridle paths. These easements may or may not be fenced by Horatio Corp. of Florida and/or Hickory Creek Property Owners Association, Inc. It is intended that these easements be utilized solely by the residents of Hickory Creek Subdivision for their pleasure in riding horses and ponies. Property owners utilizing these easements shall refrain from activities which may be nuisance to adjoining property owners.

31. These Restrictions may be enforced by Hickory Creek Property Owners Association, Inc., and by any person or corporation otherwise entitled by law to enforce same.

32. All of the restrictive covenants, conditions, limitations and other provisions hereinabove set forth shall be and remain in force and effect until January 1, 2053, and in the event any one or more of the above restrictive covenants, conditions, limitations or other provisions, or any part of same, shall at any time be held to be invalid by any court of competent jurisdiction, then said remaining covenants, conditions, limitations, and provisions shall be and remain as valid as if the invalid covenant, condition, limitation, provision, or part had never entered into or been made part of these Restrictions. The words “Horatio Corp. of Florida,” wherever use herein, shall include the assigns of said corporation.

33. At any time while these restrictions are in effect, they may be changed or amended by a written agreement of the owners of at least two-thirds of the lots in sad Hickory Creek Subdivision Unit 1.

34. Attached hereto as Exhibit A are the Articles of Incorporation of Hickory Creek Property Owners Association, Inc.; attached hereto as Exhibit B are the Bylaws of Hickory Creek Property Owners Association, Inc.; attached hereto as composite Exhibit C is a graphic depiction of the Hickory Creek subdivision; attached hereto as Exhibit D is the list identifying each parcel subject to the governing documents by legal description and name of owners at the time the proposed Revitalized Declaration was submitted for approval by the parcel owners; attached hereto as Exhibit E is the Letter of Approval of Revitalization of the Covenants issued by the State of Florida, Department of Economic Opportunity.

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IN WITNESS WHEREOF, Hickory Creek Property Owners Association, Inc., has caused this Revitalized Declaration to be executed in its name on this ____ day of 2023.

HICKORY CREEK PROPERTY OWNERS
ASSOCIATION, INC.

President

Signature of Witness

Signature of Witness

Printed Name of Witness

Printed Name of Witness

STATE OF FLORIDA
COUNTY OF HILLSBOROUGH

Sworn and subscribed before me on this ____ day of _____, 2023, by _____, as President of Hickory Creek Property Owners Association, Inc., a Florida corporation, not-for-profit, on behalf of the corporation who is personally known to me or has produced a Florida Driver's License as identification.

Notary Public

My Commission Expires:

Signature of Notary Public

Secretary

Signature of Witness

Signature of Witness

Printed Name of Witness

Printed Name of Witness

STATE OF FLORIDA
COUNTY OF HILLSBOROUGH

Sworn and subscribed before me on this ____ day of _____, 2023, by _____, as Secretary of Hickory Creek Property Owners Association, Inc., a Florida corporation, not-for-profit, on behalf of the corporation who is personally known to me or has produced a Florida Driver's License as identification.

Notary Public

My Commission Expires:

Printed Name of Notary Public